ANNEXURE 1- CONDITIONS OF CONTRACT

COC 1 – Works

The scope of the Works of the Contractor are listed in the Appendix. In addition to the Works defined in the Appendix, the following shall also form part of the Works:

1. Contractor shall prepare shop drawings and as built drawings for all the Works and submit the same for the written approval of the Project In-Charge of the Employer within a period of thirty (30) days from the date of execution of the Works Contract.

2. The Contractor shall prepare designs for all the temporary and enabling Works including but not limited to shuttering, staging, scaffolding, equipment foundations, piling/footing load tests and other preparatory works, etc. and submit the same to the Project-In Charge within a period of 30 (thirty) days from the date of this Works Contract.

3. The Contractor shall submit the following for the Employer's approval (which is inclusive of but not limited to the following):

    - Within thirty (30) days from the date of this Works Contract:

        a) Health, Safety and Environment Policy and Plan;
        b) Detailed Program of Works in accordance with COC 3 and COC 6;
        c) Quality Assurance/Quality Control Policy and Plan;
        d) Organizational Chart including the deployment schedule in accordance with COC 16;
        e) Manpower Histogram including the deployment schedule;
        f) Monthly Cash Flow;
        g) Plant, Machinery and Vehicles (PMV) Schedule in accordance with this Works Contract;
        h) Stage-wise site logistics Plan;
        i) Document Control Plan;
        j) Submittals as per this Works Contract; and
        k) Such other document(s) as may be required.

    - Prior to commencement of the relevant Works:

        a) Method Statement;
        b) Statement of Hazard Identification & Risk Assessment (HIRA);
        c) Details of the materials to be used for completion of the Works;
        d) Design Calculations, if required; and
        e) Such other document(s) as may be required.

4. The Contractor shall deploy a competent team, qualified in executing Building Information Modelling (BIM) software within a period of 30 days from the date of award of the Works to the Contractor. The Contractor shall use the BIM software to prepare all required documents, including but not limited to, shop drawings, billing (quantity derived from BIM), substantiation/verification documents, monthly logistics planning, designs for all the temporary and enabling works, and all as-built documentation (submitted on real-time basis) as directed by the Project In-Charge.

5. The Contractor shall carry out the Works with best industry practices for safety, including fall protection, edge protection in addition to other safety related features, accessories and provisions. The Works shall be carried out for all the floors/levels as may be required by the Project In-Charge.

The Employer may choose to retain such facilities beyond the currency of this Works Contract at no additional cost.

6. The Contractor shall be responsible for interfacing and coordinating with third parties in respect of other work packages under the instructions of the Project In-Charge.

7. The Contractor shall exercise necessary care and caution to ensure that no physical damage is caused to any works of the Project including the Works envisaged in this Works Contract by reasons of the Contractor's site activities and/or any acts of the Contractor during the construction schedule. The Contractor shall also carry out the Works in a manner which ensures that there are no delays in the other work packages.

8. The Contractor shall, without any additional cost, perform any ancillary works or services which are necessary to be carried out to comply with its obligations as per the Works to the satisfaction of the Employer, which may or may not have been explicitly mentioned herein or which may arise from any obligations of the Contractor under the Works Contract.

9. The Works also includes preliminaries, including but not limited to, supply, erection, maintenance and removal of all temporary facilities, services, utilities staff, equipment, vehicles, tyre washing system and pit, entrance gates to the plot, site running expenses, preliminaries amongst others, as may be required for the execution of the Works including compliance with safety and labour laws.

10. The Contractor shall in accordance with applicable laws make his own arrangement for the labour camp outside the Project Site. No labour accommodation shall be provided at the Project Site.

The Contractor agrees and confirms that the scope of the Works is neither exhaustive nor conclusive and shall be subject to such modifications made by the Employer from time to time.

COC 2 - Contract Amount

This is a fixed unit rate re-measurable contract. The Contract Amount is as mentioned in the Appendix hereto and as further detailed in the BOQ.

The unit rates also include the performance of any ancillary works, preliminaries and services by the Contractor which are necessarily required to be carried out to satisfy its obligations in accordance with the Works Contract, which may or may not have been explicitly mentioned herein and/or which may arise from any obligations of the Contractor under this Works Contract. For the sake of clarity and convenience, the unit rates mentioned in the BOQ are also inclusive of all materials, labour, enabling works and incidental costs, *inter alia,* including overheads towards the safety, quality and timely completion of the Works.

The unit rates are exclusive of GST but inclusive of all other taxes, duties and levies as applicable as on the date of this Works Contract with the exception of Labour Cess. GST shall be reimbursed to the Contractor by Employer on the production of valid documentary proof in this regard. Labour Cess shall be paid by the Employer at the prevailing rates. The Employer shall not be liable to the Contractor for any failure on the part of the Contractor in correctly interpreting and complying with the applicable laws regarding GST, other taxes, duties, levies etc., as applicable to this Works Contract.

In the event of any change in law during the pendency of the Works Contract which leads to;

- introduction of new taxes, duties and levies; and/or

- cancellation of any existing taxes, duties and levies; and/or
- modification in the unit rates of any existing taxes, duties and levies

the BOQ unit rates shall be adjusted to reflect such changes and the corresponding amount shall be reimbursed to or recovered from the Contractor, as the case may be and subject to documentary substantiation by the Contractor to the satisfaction of the Employer.

The unit rates shall remain firm during the Rate Validity date mentioned in the Appendix. No adjustments whatsoever shall be made to the unit rates on account of increase in the cost of material, labour, fuel, tools and tackles, plant, equipment, services and transport charges, etc., subject to the provisions of COC 57 [Adjustments to Rates of Specified Materials], if applicable.

The quantities set out in the BOQ are estimated quantities for the Works and are not to be taken as the actual and correct quantities for the Works to be executed. The Contractor is required to estimate the quantities as per the drawings and approved shop drawings. It is mandatory on the part of the Contractor to inform, within maximum period of thirty (30) days from the date of this Works Contract to the Employer of any variations in the quantities of item/(s). Unless otherwise specified under COC 20 [*Mode of Measurement*], the measurements shall be made of the net actual quantity of each item and the method of measurement shall be as per the latest edition of IS 1200 according to the Bureau of Indian Standards.

COC 3 - Programme of Works

The Commencement Date and the Completion Date shall be as more particularly stated in the Appendix.

Time being the essence of this Works Contract, the Contractor shall ensure completion of the Works within the Completion Date. The Contractor shall submit the detailed level 6 cost and resource loaded programme of the Works in latest version of Primavera or in such medium as approved by the Project In-Charge to its satisfactory breakdown level, accurately identifying therein all the stages of the activities which are required for the completion of the Works, for the written approval of the Employer, within thirty (30) days from the date of execution of this Works Contract,.

The aforesaid programme of the Works shall also indicate the various tasks/sub-tasks, relevant logical activity sequencing, critical path(s) and total float with respect to the said Project.

The Parties agree and confirm that the aforesaid programme of the Works shall also form basis for arriving at the milestone dates for the purpose of determining the LD (defined below), if any, in terms of COC 6 [*Liquidated Damages*].

The Parties hereby agree that any 'approval' and/or 'conditional approval' and/or 'no objection' whatsoever to the Contractor's programme shall not relieve the Contractor from its obligations, and the Contractor shall continue performing the Works as per the last approved version of the programme unless such 'approval' and/or 'conditional approval' and/or 'no objection' is given by the Employer in writing to or the Contractor is specifically instructed in writing to submit a revision to its programme.

During the course of the Works, if the actual progress of the Works lags behind the planned progress of Works (as per the approved, or conditionally approved construction program(s) by more than 10% (ten percent), the Contractor shall submit a revised recovery programme for the Employer's approval which the Employer may approve at its sole discretion and such approval if given, shall be subject to such terms and conditions as the Employer may deem fit at its sole discretion.

The Contractor agrees and confirms that at any point in time during the currency of the Works Contract, the progress of the Works at the Project are delayed for a period of (fifteen) 15 number of days or more in accordance with the project programme , then without prejudice to any other rights and remedies as available to the Employer under the Works Contract or in law or equity, the Employer shall be entitled to descope part of the Works and award such part of the Works to another contractor at the cost of the Contractor and the Contractor shall not dispute the same.

Since time is of the essence of this Works Contract, in the event of any delay whatsoever, it shall be the obligation of the Contractor to propose and implement immediate corrective measures to mitigate delay(s) and/or disruption(s) in order to ensure timely performance of the Works under the Works Contract and without entitling the Contractor to any additional costs whatsoever.

The Contractor agrees and confirms that in the event of any delays, the Contractor shall forthwith and no later than (seven) 7 days from the first occurrence of delay, submit to the Employer for approval, the recovery programme setting out such mitigation/ remedial measures to overcome the accumulated delay.

COC 4 - Performance Security

The Contractor shall obtain at his cost PBG in such approved format acceptable to the Employer issued by such bank as approved by the Employer of the amount stated in the Appendix. If an amount is not specified in the Appendix to this Agreement, this clause shall not apply.

The Contractor shall deliver the PBG to the Employer within twenty-eight (28) days from the date of execution of this Agreement. The Contractor shall ensure that the PBG is enforceable and valid till the Completion Date as mentioned in the Appendix or until the Works have been completed including any extension of time and defect remediation period, plus an additional period of three (3) months to be computed from the Completion Date or any extended date or the defect liability period, whichever is later.

In case the Contractor fails to submit the PBG within twenty-eight (28) days from the date of execution of this Works Contract, the Employer will be entitled to deduct the total amount towards the PBG from the first running account bill ("**RA Bill**") itself. The Contractor shall ensure that the first RA Bill value should be such that it should accommodate the total amount of the PBG and the retention amount for that RA Bill.

If the PBG is required to be renewed, the Contractor shall renew the same at least thirty (30) days prior to the expiry thereof. In the event the Contractor fails to submit or renew the PBG as mentioned herein, the Employer shall have the right to withhold such amount towards the PBG from the payments due to the Contractor including advance payment (if any).

The Contractor expressly understands, agrees and confirms that the Employer can invoke the PBG either in part or in full in the event of:

a) failure by the Contractor to complete the Works within the Completion Date as stated in the Appendix to this Agreement; or
b) failure by the Contractor to extend/renew the validity of the PBG as described in the foregoing paragraphs; or
c) failure by the Contractor to pay the Employer an amount due as either agreed by the Contractor or determined by the Employer towards Employer's Claims including liquidated damages; or

d) on termination of the Work Contract under COC 49 [*Termination of Works Contract*], irrespective of whether notice of termination has been given; or
e) abandoning of the Works by the Contractor; or
f) any unadjusted dues recoverable by the Employer from the Contractor till settlement of final bill; or
g) failure by the Contractor to settle dues payable to the Employer towards un-recovered costs under retention; or
h) any unadjusted consequential losses incurred by the Employer due to reasons attributed to the Contractor; or
i) for the purpose of recovering the advance or any overpaid amounts by the Employer to the Contractor and/or any damages and/or losses (including losses towards wastage, rework, loss of material amongst others) as determined by the Employer; and/or
j) contractor is in breach of any of the terms and conditions of the Works Contract.

The PBG shall be released upon;

a) Completion of the Works in accordance with the terms herein.
b) Completion of all snags as per the Virtual Completion Certificate (the "**VCC**");
c) Settlement of the final bill including claims and variations, if any.
d) Upon submission of the **"**No-Dues Certificate" (except for adjusted retention amount) by the Contractor to the Employer confirming that the total of the final bill represents the full and final settlement of all monies except adjusted retention amount due to the Contractor under or in connection with this Works Contract.

The Contractor shall not be eligible for any claims and variations after the release of the PBG by the Employer.

COC 5 - Extension/Reduction of Time

The Contractor shall be given activity(ies) wise extension of time for delays due to causes and reasons not attributable to the Contractor, at the sole discretion of the Employer in this regard. This extension of time shall be limited to that part(s) of the activity(ies) only and not for the entire Works,

However, prior to grant of any such extension of time(s), it shall be the obligation of the Contractor to first mitigate any such delays in terms of COC 3 hereinabove and thereafter demonstrate to the satisfaction of the Employer that such delays are unavoidable in spite of the best efforts of the Contractor.

It is clarified that in case the Works are increased by the Employer within the Completion Date and according to the Employer such increased Works can be performed by the Contractor from the float available in the project programme/schedule and/or by increasing the resources and/or by re-sequencing the activities and/or by running parallel activities etc., then in such event, the Contractor shall not be entitled to any extension of time.

In case of substantial decrease in the Works, the Parties shall mutually agree to reduce the time for completion of the balance Works.

COC 6 - Liquidated Damages

If the Contractor fails to complete the Works on or before the Completion Date or within any extended/reduction of time, under COC 5 hereinabove, then the Contractor shall pay LD to the Employer at the percentage as set out in the Appendix.

Notwithstanding the aforesaid, the Contractor agrees and confirms that the LD's as aforesaid shall not relieve the Contractor from its obligation to complete the Works, or from any other duties, obligations or responsibilities which the Contractor may have under the Works Contract.

COC 7 - Compensation for Suspension

The Contractor shall not be entitled to any payments on account of suspension of the Works or part thereof by the Employer.

COC 8 - Progress Meetings and Reports

Meetings between the Contractor's Authorized Representative and the Project In-Charge will be held at least once every week at the Project Site to monitor the progress of the Works. The Contractor shall on or before the 5th day of each month until the Completion Date or such other date approved by the Project In-Charge, submit with the Project In-Charge, monthly report with photographs, detailing the progress of the Works. This report shall be in a format acceptable to the Project In-Charge and shall include progress, decisions and drawings required for the next month and any other information sought by the Employer which is required to facilitate the Works.

COC 9 - Communication

Wherever The Works Contract provides for giving or issuing of approvals, certificates, consents, determinations, notices, requests, etc., such communication shall be exchanged, in writing, only between the Authorized Representatives of the Contractor and the Project-In-Charge of the Employer as mentioned in the Appendix to this Agreement. Only the communication made in the aforesaid manner, shall be considered as valid.

Approvals, certificates, consents and determinations shall not be unreasonably withheld and/or delayed by either of the Parties. The language for communication shall be English.

COC 10 - Project Documents

The Contractor shall keep a complete set of the Project related documents including but not limited to drawings, specifications, instructions, relevant codes, permits, royalties, compliance documents etc. obtained by the Contractor. A copy of the aforesaid documents shall be submitted to the Project In-Charge as soon as possible, for the Employer's records.

The Contractor shall adopt and install electronic document management system as maybe required by the Employer at its own cost. Further, no physical copies shall be issued by the Employer.

COC 11 - Insurance and Statutory Requirements

The Employer shall procure and maintain a Contractor's All Risk (the **"CAR"**) insurance policy.

The following insurance policies are to be procured and maintained by the Contractor to adequately cover the risk pertaining to Contractor's workmen, machinery, equipment and materials for the entire duration of the Works and for any extended periods as may be agreed between the Parties.

a) Workmen compensation insurance for workmen/labour working at the Project Site.
b) Group personnel accident insurance to staff/workmen/labour.
c) Automobile Liability Insurance/Motor Vehicle Liability Insurance.

d) Third party Liability Insurance.
e) Insurance for Contractor's equipment, plant and machinery (owned and/or hired)
f) Other insurance policies as are customary, desirable or necessary to comply with the applicable laws, local or other requirements as on the date of this Works Contract or during the term of the Works Contract.

The above list of insurance policies is only illustrative and not exhaustive, and the Contractor will be required to obtain further insurance policies if the same are necessarily required for any reason whatsoever, *inter alia,* including on account of any statutory compliance. Copies of the aforementioned insurance policies, procured by the Contractor, shall be submitted to the Employer within the timeline as mentioned in the Appendix. The Contractor shall also submit from time to time such documentary evidence as to the maintenance/extension and validity of the said insurance policies.

Before commencement of the Works, the Contractor shall obtain a labour license from the concerned authority(s) under the Contract Labour (Abolition and Regulation) Act, 1970, and a copy thereof shall be immediately furnished to the Employer.

The Contractor shall bear full and final responsibility for the engagement and employment of all labour, its subcontractors/vendors and all matters related thereto and shall be responsible for the compliance and adherence of all statutory obligations in accordance with the applicable law for the time being in force and the Employer will have no obligation whatsoever in this regard. Any fees, penalty, interest and/or disputes/controversies in this respect will have to be met with and borne by the Contractor at its own risk as to cost and consequences.

Such compliance and adherence shall include, as applicable to the construction industry and to the Project Site, but not limited to:

a) Building & Other Construction Workers (Regulation of Employment & Conditions of Service) Act, 1996 ("BOCW Act") and Maharashtra BOCW Rules, 2007.
b) The Gas Cylinders Rules, 2004
c) The Indian Electricity Act, 2003
d) The Indian Electricity Rules, 1956 & 2005
e) Fatal Accidents Act, 1855
f) Explosives Act, 1884 and Explosives Substances Act, 1908 & Explosives Rules, 2008
g) Motor Vehicles Act, 1988 and Central Motor Vehicles Rules, 1989
h) Petroleum Act, 1934 and Rules, 2002
i) The Static & Mobile Pressure Vessels [Unfired] Rules- 1981
j) Noise Pollution Regulation & Control rules, 2000
k) Environment (Protection) Act, 1986 and Rules, 1986.
l) The Hazardous Waste (Management & Handling) Rules, 1989
m) Air (Prevention & Control of Pollution) Act, 1981 and Rules, 1982
n) National Ambient Air Quality Standards- Notification 1994 under Air Act.
o) Water (Prevention & Control of Pollution) Act, 1974 and Rules, 1975
p) Battery (Management and Handling) Rules, 2001
q) Bio-Medical waste (Management & Handling), Rules1998
r) Child Labour (Prohibition & Regulation) Act, 1986 and Rules, 1988
s) Contract Labour (Regulation & Abolition) Act, 1970 and Rules, 1971
t) Inter-State Migrant Workmen (Regulation of Employment & Conditions or Service) Act, 1979 and Rules, 1980
u) Public Liability Insurance Act, 1991 and Rules
v) Workmen's Compensation Act, 1923 with State Rules.

w) Minimum Wages Act, 1948;
x) Payment of Wages Act, 1936;
y) Employees Provident Fund and Miscellaneous Provisions Act, 1952;
z) Employees State Insurance Act, 1948;
aa) Employee's Deposit Linked Insurance Scheme, 1976;
bb) Bombay Labour Welfare Fund Act, 1953;
cc) Maharashtra Contract Labour (Regulation and Abolition) Rules, 1971;
dd) Payment of Bonus Act, 1965;
ee) Maternity Benefit Act, 1961;
ff) Payment of Gratuity Act, 1972;
gg) Epidemic Diseases Act, 1897;
hh) Compliances list as per Annexure of the Works Contract: List of Statutory Compliances; and
ii) any statutory modifications or re-enactments thereto.

The Contractor shall be fully responsible for the aforesaid compliances, *inter alia,* including by any subcontractors/vendors employed and/or engaged by it with respect to the Works/Project. The Contractor hereby indemnifies and shall keep the Employer indemnified against all statutory requirements, risks, liabilities etc. in respect of the Project including indemnifying the Employer against any expenses, liability, loss, claim or proceedings whatsoever arising under law in respect of personal injury to or the death of any person arising out of or in the course of or caused by the carrying out of the Works.

COC 12 - Permits

All the necessary approvals, permits, municipal sewerage charges, drainage charges for discharging the water, licenses, registration and other clearances required for permanent works shall be arranged for by the Employer. However, the Contractor shall provide reasonable assistance as and when requested by the Employer in this regard. Any fees/expenses towards the same shall be paid by the Employer directly to the concerned authorities. Any charges by way of deposits for permanent connections or for occupation of any tower in the Project shall be borne by the Employer.

However, all the permits for temporary or enabling works shall be procured and maintained solely by the Contractor, at its own cost and the Employer shall only provide assistance by providing relevant documents (if available with the Employer), as and when requested by the Contractor. However, all the fees, charges and deposits for temporary or enabling works shall be borne by the Contractor, which is deemed to be included in the Contract Amount.

COC 13 - Site Logistics

The Contractor shall plan its logistics on a non-exclusive basis at the Project Site. All statutory and regulatory approvals required for the setting up of temporary facilities, logistics, preliminaries, site establishments, temporary utilities etc. shall be arranged for by the Contractor, at its own cost. However, the Employer shall provide reasonable assistance by providing required liaisoning documents (to the extent available with the Employer), at the request of the Contractor.

The Contractor shall abide by all the norms prescribed from time to time in respect of the labour at the Project Site, by the regulatory authorities and the statutory authorities, including norms in respect of hygiene, pest control etc. All expenses towards the same shall be solely borne by the Contractor. In case of any default whatsoever by the Contractor, the Employer shall have the right to cure such default at, the risk, costs and consequences of the Contractor and the Contractor shall reimburse / indemnify the Employer fully in this regard.

Permanent approvals such as building proposal, NOC from the Chief Fire Officer etc. from the relevant local authorities shall be arranged by the Employer. The Contractor shall provide all reasonable and necessary assistance, as and when requested by the Employer.

The Contractor shall, while setting out its logistics, allow reasonable space for the Employer and its agents/officers/employees/representatives or direct subcontractors/vendors, as may be required by the Employer to set up the Employer's logistics.

The Contractor may be required to shift its temporary facilities, logistics, preliminaries, site establishments, temporary utilities etc. from time to time for convenient execution of the Works. The cost of such shifting is deemed to be included in the Contract Amount and the Contractor shall not be entitled to any additional cost on this account whatsoever and shall not raise any claim in respect thereof.

COC 14 - Water and Electricity

Unless otherwise stated in the Appendix, water and electricity connections for construction shall be supplied free of cost to the Contractor at the designated locations. Thereafter, all expenses in respect thereof including distribution of the water and electricity shall be done by the Contractor in compliance with the statutory regulations and at its own cost, as per the scheme to be submitted to and approved by the Employer.

The Contractor shall be responsible for safety of electrical installation and will get the same certified by electrical inspector as per the requirement of the Electricity Act, 2003.

COC 15 - Dewatering

The Contract Amount is inclusive of all dewatering charges (if required). No dewatering charges shall be payable separately to the Contractor for any reasons whatsoever.

COC 16 - Deployment of Staff

The Contractor shall deploy necessary competent staff, for the execution of the Works, having relevant experience in execution of similar type of work in Real Estate. An organizational chart showing the designations and reporting levels, including the detailed resumes of the key personnel, shall be submitted by the Contractor, for the prior written approval of the Project In-Charge.

The consent of the Employer's personnel who shall also interview the key personnel identified in the organizational chart shall be required, prior to their appointment in or for the Project.

The Contractor shall seek and obtain the written approval from the Employer prior to any appointments and/or transfers of any of its key personnel in the organizational chart. The Project In-Charge shall be authorized to reject any such appointments and/or transfers.

In the event of sudden departure and/or resignation of any key personnel in the organizational chart, the Contractor shall provide a suitable replacement, which would be subject to the prior written approval of the Employer's personnel. The Contractor shall necessarily ensure that the predecessor properly hands over and briefs his successor before being discharged of his duties.

The Project In-Charge shall be authorized to instruct the Contractor for immediate removal of any personnel of the Contractor due to misconduct, incompetence and/or negligence, and the Contractor shall be bound by such instructions.

COC 17 - Working Hours

The Contractor shall comply with the laws stipulated by the Central Government/State Government/Municipal Corporation/Maharashtra Pollution Control Board and the like, applicable to the Project Site for day working hours and/or night working hours and shall be solely responsible for the compliance thereof and the Employer shall not be liable in any manner whatsoever in respect of the same.

COC 18 - Formwork

Not Applicable.

COC 19 - Health, Safety, Environmental (HSE) Compliances

The Contractor shall adopt the best HSE practices in the industry and comply with the requirements as stipulated under the BOCW Act and shall maintain a safe and healthy environment throughout the duration of the Works Contract.

The Contractor hereby indemnifies and holds harmless the Employer, its officers, directors, employees, representatives and agents,

a) against any claims arising out of or against the inability / failure of the Contractor and /or subcontractors/vendors to maintain a safe and hygienic working environment in and around the Project Site, whether or not resulting in any bodily injuries, loss of life of any person including third parties or any animals, damage to any properties; and

b) against all claims, damages or penalties and losses caused as a result of the Contractor's non-compliance of any HSE requirements stipulated under law.

It shall be the responsibility of the Contractor to,

a) appoint a qualified Safety Manager along with necessary qualified team to maintain requisite HSE standards at the Project Site.

b) observe all necessary safety precautions to safeguard its personnel (whether the Contractor's own personnel or otherwise), suppliers, animals, property including completed Works at the Project Site and comply with all the requirement and norms for safety under prevailing law.

c) observe all necessary precautions and take all necessary measures to ensure that its plant, machinery, equipment and vehicles strictly adhere to the safety norms, norms regarding emission levels and noise levels as laid down by the statutory authorities including under the BOCW Act 1996.

d) observe all environmental laws and state pollution control board norms regarding disposal or treatment of all types of waste matter including water, sewage, bio-hazard waste etc.

e) ensure that all personnel of the Contractor working within the Project Site are provided with adequate personal protective equipment including but not limited to safety helmets, safety shoes, safety jacket, safety goggles, safety glasses, dust mask, full body harnesses, life line for working at height and other PPE's as required taking into account the hazards and risks of the relevant functions to be performed by such personnel.

f) ensure that adequate precautions are taken to prevent dangers from electrical equipment. All the electric cables and fixtures shall be routed overhead with proper arrangement and shall not be tied on reinforcement of columns, barricade railings etc. Entire temporary electrical installation shall be protected with miniature circuit breaker and earth leakage circuit breaker to guard against short circuits and electrocution.

g) ensure that materials are not stacked or placed in a manner that they cause danger or inconvenience to any person or the public or property.

h) ensure that all height work is supervised and fall protection standard measures are provided and personnel are wearing safety belts. No work at height shall be performed unless proper access, platform and railing or safety nets are ensured. All scaffolds, platforms etc. required to carry out works at a height shall be first inspected and approved by safety personnel prior to use. LED lights shall be provided at the edges of the safety nets.

i) ensure that all type of lifting machines, tools and tackles are third party tested and examined by competent persons, safe working load is displayed and certificates are furnished to the Employer before use of such equipment. The operating staff shall be trained and competent and the list of such operating staff shall be notified in advance to the Project In-Charge.

j) provide and ensure that all fire protection arrangements such as portable fire extinguishers of appropriate class, sand buckets and fire hydrant lines with adequate water supply etc. are available to meet with any fire emergency and the staff is trained to operate such equipment as well as in responding to fire emergency situations. Fire extinguishers shall always be kept in proper encased cage along with welding and gas cutter machines during hot work.

k) ensure that applicable robust MS barricades are provided around the excavation, piling and while doing height work to prevent fall of person or vehicles in the excavated area, and put-up appropriate warning signage.

l) ensure that sanitation facility for labour is provided, which includes urinals, toilets and washbasin with running water taps in the periphery of the Project Site and in the towers at every alternate floor or as directed by the Project In-Charge, maintained in hygienic conditions.

In addition to the practices mentioned above, the Contractor shall also follow "Safety and Health Rules & Regulations (HSR Requirements)" annexed hereto as Annexure 3. The Contractor is aware and agrees that the Contractor shall be liable to pay such fines as may be determined by the Employer for non-compliance of HSE norms as mentioned in the HSR Requirements.

COC 20 - Not Applicable

COC 21 - Housekeeping

The Contractor shall maintain housekeeping of the Project Site and keep the same clean throughout the period of the Works Contract. The Contractor shall ensure that the Project Site is cleared of debris at all times. In the event the Contractor fails to maintain housekeeping to the satisfaction of the Project In-Charge, the Employer shall be entitled to engage a third party for cleaning the debris/waste materials which have collected at the Project Site, and all costs associated therewith, including the Employer's incidental and overhead costs, the costs/charges of the said third party, shall be recoverable from the Contractor.

COC 22 - Antiquities

All fossils, antiquities and other objects of interest or value which may be found at the Project Site during the progress of the Works shall become the property of the Employer. The Contractor shall inform the Employer and/or the Project In-Charge immediately of the same and shall keep the said items in safe custody in trust for the Employer until handing over the same to the Employer and/or the Project In-Charge.

COC 23 - Submission of Reports

The Contractor shall submit to the Project In-Charge, daily, monthly work progress reports; daily, weekly, monthly planning reports; daily account of material indicating daily receipt/consumption/balance on hand, daily labor report, all test reports etc. or such reports required by the Project In-Charge.

The Project is proposed to be LEED Gold/Platinum certified for core and shell. The Contractor shall submit LEED reports in the formats approved by the Project In-Charge/LEED consultant on a monthly basis or as may be required till the completion of the Works and till the final handing over of the Project to the Employer.

COC 24 - Reinstatement

The Contractor shall reinstate all areas/works disturbed by way and/or manner of transit of materials, the Contractor's means and methods of construction, the Contractor's logistics or installation of temporary works etc. such that they are fit for the intended purpose. In the event the Contractor fails to reinstate the areas/works as aforesaid to the satisfaction of the Project In-Charge, the Employer may engage a third party and all costs associated therewith, including the Employer's incidental and overhead costs, the costs/charges of such third party shall be recoverable from the Contractor.

COC 25 - Contractor's Care of Works

The Contractor shall be responsible for full care of the Works from the Commencement Date until the VCC is issued for the Works.

Notwithstanding the aforesaid, after the responsibility has been passed to the Employer post issuance of the VCC, the Contractor shall continue to be liable towards full care of the Works which are outstanding on the date of issuance of VCC and/or the Works that may have been notified in the DNP and/or the Works that may have been notified during the guarantee period, if any, until such outstanding work has been completed.

If any loss or damage occurs to the Works, during the period when the Contractor is responsible to take care of such Works, the Contractor shall rectify such loss or damage at the Contractor's risk and cost, to ensure that such Works conform with the Works Contract.

The Contractor shall be liable for any loss or damage that is caused to the Works by any actions performed by the Contractor after the VCC has been issued. The Contractor shall also be liable for any loss or damage which occurs after the VCC Certificate has been issued and which arose from a previous event for which the Contractor was liable.

COC 26 - Contractor's Obligation to Rectify/Make Good Defects

The Contractor shall be responsible, during the validity of the Works Contract, for the quality and performance of the Works in accordance with good industry practices and the requirement of this Works Contract including but not limited to adhering to the drawings, specifications, etc.. If any error is noticed subsequently, the Contractor shall rectify such error at its own expense. A "no-objection" and/or an "approval" and/or any other form of certification by the Employer, of any submissions whatsoever of the Contractor shall not constitute a waiver to the Contractor under the Works Contract.

In the event the Contractor fails to rectify/make good defects to the satisfaction of the Project In-Charge, the Employer may engage a third party and all costs associated therewith, including the Employer's incidental and overhead costs, shall be recoverable from the Contractor.

COC 27 - Avoid Inconvenience to the Public and Surrounding Properties

The Contractor shall ensure that there is no inconvenience caused to the public, surrounding properties, utilities, infrastructure etc. during the construction. All necessary preventive meaures and precautions shall be taken by the Contractor including but not limited to vertical safety netting cover on the tower/s of the Project. In case of any damage to the adjacent properties for reasons attributable to the Contractor, the Contractor shall make good and/or reimburse the same, and the Employer shall not have any liability whatsoever with regard thereto.

COC 28 - Limitation of Liability

The liability of the Contractor to the Employer under or in connection with this Works Contract other than under COC 33 [*Contractor's Duty to Indemnify*] shall not exceed the Contract Amount.

This clause shall not limit the liability in case of any misdemeanor, fraud, negligence, willful default or reckless misconduct by the Contractor.

The Employer shall have the right to adjust any amounts for which the Contractor is liable to the Employer, from the monies due to the Contractor including,

a. retention;
b. advance bond (if any);
c. unpaid dues;
d. unpaid dues of the Works executed by the Contractor for the Employer for other projects; and
e. PBG.

COC 29 - Subcontractors/Vendors

The Contractor shall intimate the Project In-Charge in writing at least thirty (30) days in advance in case it wishes to appoint any subcontractors/vendors and shall obtain prior written approval of the Project In-Charge before engaging them. The Project In-Charge shall also be entitled to interview such subcontractors/vendors, if he so desires.

The Employer and/or the Project In-Charge shall not be held liable for defaults of any nature and/or outstanding payments that are to be made to such subcontractors/vendors and the same shall be the sole and exclusive responsibility of the Contractor. It is hereby clarified that the Contractor shall be liable for all acts, actions and omissions on the part of the said subcontractors/vendors while

discharging their obligations in respect of the work to be carried out on the Project Site and shall hold the Employer harmless in this regard.

COC 30 – Security

The Contractor shall arrange for its own security and that of the Project Site at its own cost and the Contractor shall be solely responsible for the safety of plant, machineries, equipment, materials and free issued materials at the Project Site.

COC 31 - Inspection and Use of Contractor's Equipment by Employer and its Agents

The Contractor shall allow the inspection of its equipment by the Employer's representatives at all times. The Contractor shall also allow the use of the same by the Employer's agents and/or representatives at pre-agreed times, during the course of the Works, at no additional cost to the Employer.

COC 32 - Employers Right to Access the ongoing Works

The Project In-Charge and all persons duly authorized by him shall at all times have access to any of the Works which are under preparation / in progress and/or such works which will be utilized in the Works. All activities undertaken by the Contractor shall have a checklist for verifying the conformity to the same and to the satisfaction of the Project In-Charge with regard thereto. All activities shall have a checklist signed by the Project In-Charge or any person duly authorized by him.

COC 33 - Contractor's Duty to Indemnify

The Contractor hereby indemnifies and holds harmless, the Employer, its officers, directors, employees, representatives and agents, from any losses, costs, suits, expenses, charges, claims, damages, penalties, legal actions and such events of similar nature, directly or indirectly, arising from and/or due to:

- the Contractor's failure in complying with the provisions of this Works Contract;
- the Contractor's failure in complying with the norms of any Regulatory/Statutory Authorities;
- the Contractor's failure in complying with applicable laws;
- any bodily injuries, loss of life of any person including third parties or any animals attributable to the Contractor; and
- damage to any property to any extent caused due to or arising from or in the course of construction activity carried out and attributable to the Contractor

- any acts or omissions of the Contractor and/or any of its subcontractors/vendors, throughout the period of this Works Contract, including throughout the duration of the DNP.

Notwithstanding anything stated elsewhere in this Works Contract, any amounts to be indemnified to the Employer as mentioned herein, shall be recoverable from the Contractor including by withholding payments or adjusting the same against PBG, advance bank guarantee, retention amount, any RA Bills or the final bill of the Contractor.

COC 34 - Advance Payments

Not Applicable.

COC 35 - Bill Certification and Payment

The Contractor shall make an application for interim payment by raising a RA Bill on or before the 25th of each calendar month for the amount, which at the date thereof fairly represents the value of the Works done and of any variations executed and properly authorized/approved under this Works Contract.

If, at any time during the term of this Works Contract, it is observed that the Contractor has utilized the funds in the Dedicated Bank Account for any other purpose than what it is intended for, the Employer shall be entitled to withhold the subsequent RA bills. Such acts of the Contractor shall constitute a breach of this Works Contract.

The RA Bills shall be addressed to the Employer and marked to the attention of the Project In-Charge. The Project In-Charge shall evaluate and certify the total value of the Works duly executed and the Employer shall pay the Contractor within the time specified as under;

a) The RA Bills shall be submitted along with the relevant documents on a monthly basis and shall be certified by the Project In-Charge within a maximum period of fourteen (14) working days. The Project In-Charge shall determine any sufficiency in the documents and in the event of the insufficiency of the documents, the RA bills shall be returned to the Contractor. The Contractor shall submit Tax Invoice within three (3) days of receipt of the corrected proforma invoice by the Contractor from the Project In-Charge. Upon submitting all the documents subsequently as advised by the Project In-Charge, the RA Bills shall be certified and forwarded to the Employer's Head Office, along with Contractor's Tax Invoice, for further processing.

   The Employer shall not be held responsible for any delay in release of payment caused due to Contractor's failure to submit fully substantiated RA bills or Tax invoice within the above stipulated time frame.

b) The certified RA Bills shall be paid within fifteen (15) days of receipt of Contractor's certified Bill along with Tax Invoice at the Employer's head office, subject to subsequent certification thereof.

c) The Contractor shall also submit fully substantiated reconciliation statement of all the quantities of specified materials, free issue materials (if any), Works and any other material(s) along with financial reconciliation for any advance paid as may be required by the Project In-Charge along with the RA Bills, in a format approved by the Project In-Charge.

   The Contractor shall prepare a Master Measurement Sheet(s) ("**MMS**") for the Works based on drawings and IS 1200 for the Project In-Charge's written approval, before submission of the RA Bills. All the quantities shall be certified according to this MMS. If the actual quantities vary (within the specified limits or that of specifications) than that of the quantities mentioned in MMS, the lower of both the quantities shall be certified. No certification shall be done in the absence of MMS.

d) All the RA Bills shall be appended with the proofs of statutory payments (PF, ESIC, Cess etc.) for the preceding month. The Employer reserves the right to withhold from any RA Bills, the amounts equivalent to the unpaid statutory payments, until such time the proof of statutory payments are submitted in full to the Employer.

e) The Contractor shall also provide a confirmation statement, along with each RA Bill, indicating that it has disbursed all due payments to its labour and subcontractors/vendors. Such

statement shall be one of the pre-requisites for payments against all RA Bills. For the ease of administration, it is hereby agreed that the Contractor shall submit such statement confirming that it has disbursed all due payments to its labour and subcontractors/vendors upto two (2) months preceding the month for which the RA Bill is raised.

f) Along with every RA Bill, the Contractor shall submit a copy of the Statement of Account of the Dedicated Bank Account.

g) The Contractor is required to estimate the quantities as per the drawings issued and approved shop drawings from time to time. It is mandatory on the part of the Contractor to inform the Employer of any variations in the quantities of item/(s). The Contractor shall also submit revised quantities for the entire Project based on the latest GFC drawings issued to it along with every 4th RA Bill.

h) The Contractor shall submit provision for the executed yet unbilled works on a monthly basis. Invoice for the same shall be included in the subsequent RA Bill. The Contractor shall ensure that the amount of the invoice for the Works provisioned shall match with the provision made in the previous month. In the event, the actual amount of the invoice for the Works provisioned is less than provision made in the previous month, the RA Bill shall be rejected.

i) The final bill shall be certified and paid in full within two (2) months of the issuance of the VCC (defined below) by the Project In-Charge, subject to the submission of necessary documentation by the Contractor and subject to the provisions of COC 43 [*Virtual Completion Certificate*] and provided all the snags/defects (minor and major) have been resolved by the Contractor to the full satisfaction of the Employer.

j) In the event the Contractor fails to comply with any of the conditions of this Works Contract and/or any of its obligations under this Works Contract, the Employer reserves the right to withhold/recover such amount(s) as maybe determined by the Employer in its sole discretion from the payments due to the Contractor under this Works Contract for this Project or under any other projects with the Employer, until such conditions and/or obligations are fulfilled by the Contractor to the satisfaction of the Employer, and thereafter the Employer shall release the withheld amount to the Contractor after adjusting the amounts incurred/suffered by the Employer.

k) The Contractor shall submit the approved documents mentioned in the Works Contract before the first RA Bill. This shall be a mandatory requirement for the certification of first RA Bill.

COC 36 - Retention

Retention means the accumulated retention amount which the Employer retains from each RA Bill and final bill submitted by the Contractor against work executed as per the Works Contract.

The retention shall be in the form of cash retention which shall be deducted at a rate of 5% (five percent) of the gross bill value on a progressive basis until the final bill and to be retained by the Employer until the completion of DNP. However, at the time of issuance of the VCC, the Contractor shall have an option to submit a bank guarantee in an approved format from a bank acceptable to the Employer of an equivalent value of the cash retained by the Employer till the date of issuance of the VCC and valid till the expiry of the DNP and only post submission of such bank guarantee, the Employer shall release the cash retention.

Alternatively, the Contractor shall have an option to submit a retention bank guarantee for an amount equivalent to 5% (five percent) of the Contract Amount plus GST in an approved format from any bank approved by the Employer, to be valid for the DNP along with the first running account bill in lieu of cash retention after completion of the Project. This retention bank guarantee shall be augmented as per the Final Contract Amount at the time of final bill.

The Employer may at its discretion recover the retention either in part or in full in the event of Contractor's failure to complete the outstanding work and/or Contractor's failure to remedying defective Works. In such an event the Employer shall be free to complete/rectify the same and recover such costs plus 15% (fifteen percent) of such costs as incidental and overhead costs from the Contractor's bills due or from the retention amount.

In addition, the Employer may at its discretion also invoke the retention either in part or in full in the event of,

a) on termination of the Works Contract under COC 49 [*Termination of Works Contract*], irrespective of whether notice of termination has been given or not; and/or
b) abandoning of the Works by the Contractor; and/or
c) any unadjusted dues recoverable by the Employer from the Contractor till settlement of final bill; and/or
d) failure by the Contractor to settle dues payable to the Employer towards un-recovered costs under performance security; and/or
e) any amounts under COC 33 [*Contractor's Duty to Indemnify*].
f) retention shall be released upon expiry of the DNP as stated in the Appendix, after adjusting any amount that may be deducted/appropriated as per the provisions of this Works Contract.

COC 37 - Site Data

The Employer has made available to the Contractor for its information such data in the Employer's possession, relevant to the Project Site and in connection with the Works. The Contractor shall be deemed to have inspected and examined the Project Site and its surroundings. The Contractor shall be responsible for interpreting all such data and shall be deemed to have obtained all necessary information as to risks, contingencies and other circumstances which may influence or affect the Works, including (without limitation):

a) the form and nature of the Project Site, including sub-surface conditions,
b) the hydrological and climatic conditions,
c) the extent and nature of the work and materials necessary for the execution and completion of the Works and the remedying of any defects,
d) the laws, procedures and labour practices of the country, and
e) the Contractor's requirements for access, accommodation, facilities, personnel, power, transport, water and other services.

COC 38 - Sufficiency of the Contract Amount

The Contractor shall be deemed to have satisfied itself as to the correctness and sufficiency of the Contract Amount and the Contract Amount covers all the Contractor's obligations under this Works Contract.

COC 39 - Progressive Drawings and Instructions

The Project In-Charge shall be authorized to issue to the Contractor, from time to time, during the progress of the Works, progressive drawings and instructions, as shall, in the Project In-Charge's opinion, be necessary for the purpose of this Works Contract. The Contractor shall execute the Works according to such drawings/instructions issued and ensure strict compliance thereof.

Notwithstanding the above, the Project In-Charge may issue instructions requiring the Contractor to open up for inspection any work covered up or to arrange for any test of materials or goods (whether or not already incorporated in the Works) or of any executed Works and make good any defects at the Contractor's own cost.

If any major tests are required, but not provided for in the Works Contract and the necessity for which does not arise due to factors attributable to the Contractor, the Contractor shall carry out such tests and the Employer shall reimburse the costs of such tests to the Contractor.

In case any instructions or drawings, pursuant to this clause, constitute works additional to those specified in the Works Contract, the Contractor shall immediately notify the Employer in writing of the same. The Contractor shall inform the Project In-Charge at least thirty (30) days in advance so that the overall work is not interrupted. The Contractor shall subject to COC 42 [*Variations*] provide in writing, a fair and reasonable proposal for any such additional work for the Employer's written approval prior to commencing the works. Alternatively, the Employer may engage a third party to execute such additional work and the Contractor shall co-operate in the execution of such additional work.

The Contractor shall prepare one month in advance a statement indicating its requirement of drawings, the quantities of materials and the time period required for the Works. No claim for extension of time will be entertained on account of the failure or delays by the Contractor in forwarding such requirements to the Employer.

COC 40 - Storage

The Contractor shall provide a proper storage facility at the Project Site at a designated space allocated by the Employer at the Contractor's own cost. The Employer shall have the right to shift the location of such storage facility from time to time, at its discretion and at the Contractor's cost and the Contractor shall fully cooperate in this regard.

The Contractor shall store the material as per the manufacturers recommendations, specifications, related codes and best industry practices such that the materials are fully protected against loss, damage or deterioration and remain in a condition that ensures performance of the obligations by the Contractor in accordance with the Works Contract. Fire safety shall be part of storage management.

In the event the Employer finds any expired/unusable materials at the Project Site, an amount equal to the value of such expired/unusable materials shall be debited from the Contract Amount as payable to the Contractor.

COC 41 - Quality Management

All the items of the Works shall be carried out as per the specifications and relevant IS or International Codes as applicable. In the event of any conflict between the specifications and the IS or International Codes, the more stringent condition of the two shall apply.

The Contractor shall submit within thirty (30) days from the execution of this Works Contract, the method statement for every item of the Works along with the required shop drawings, wherever required and a project quality plan (the **"PQP"**) explaining the quality management system to be implemented at the Project Site. The PQP shall be an integral part of this Works Contract and the Contractor is legally bound to implement PQP to achieve required processes and product quality. The PQP shall specify roles and responsibilities of all the Contractor's personnel in fulfilling quality requirements, organization chart for quality, inspection and test plan (the **"ITP"**) for all materials and processes, agreed construction sequence as per the master schedule, control of non-conformity, corrective action procedures, prequalification and performance evaluation mechanism for subcontractors/vendors, documentation control in the Project Site, quality related risks and mitigation and/or prevention measures, material storage plan, protection guidelines for materials, finished works, tolerance(s) and acceptance criteria, in process inspection and clearance, quality review mechanism, management information system (the **"MIS"**) for quality parameters, handing over procedures, list of lab equipment to be mobilized and annual calibration plan of all equipment. The PQP shall be prepared by the Contractor and approved in writing by the Employer before commencement of the Works. The PQP shall undergo revisions based on codal revisions, modifications and site improvements and the same shall be implemented at no additional cost to the Employer.

The Employer and/or his authorized representatives shall have full power to inspect the drawings of any portion of the Works and/or examine the materials and workmanship of the Works at the Project Site and/or at any place from where the materials or equipment are obtained. Acceptance of any materials or equipment and inspection and clearance of the Works by the Employer shall in no manner whatsoever relieve the Contractor of its responsibility for meeting the specifications, quality and durability. Routine type tests for product approval, incoming material tests, process and product inspections for the various items of the Works shall be performed at the Project Site, internal lab or external third party labs, as appropriate and the relevant internal / third-party test certificates shall be furnished as approved in the ITP. If required by the Employer, the Contractor shall permit the Employer's authorized representative to remain present during any of the tests. Every material that comes inside the Project Site shall have manufacturer test certificate, without which the material shall not be accepted. Frequency and processes of testing mentioned in the ITP for every material, shall be defined by the Employer based on acceptable codes and industry practice.

The Contractor shall co-operate with the Employer by actively participating in using any mobile-based or computer-based quality management application or any such other application or any other quality management documentation process, that the Employer may introduce during the execution of this Works Contract, to monitor the quality and progress of the Works. The Employer shall not proceed with the bill certification without verification of the completed Works, and as per the accepted material list in the mobile-based application.

The Contractor shall carry out the Works to the satisfaction of the Employer and/or its authorized representatives and shall be responsible for any breakage and wastage of material etc. The Contractor shall rectify at its own cost, any defects arising out of bad workmanship or use of substandard/faulty materials or due to any other reasons as has been pointed out by the Employer or its authorized representative. In matters such as workmanship, quality of materials used for the Works with respect to the Works Contract and execution of the Works, the decision of the Employer and/or its authorized representative shall be final and binding on the Contractor.

In the event any defect(s) are found in the quality of the Works whether in process or product, the cost to rectify and/or replace the same, to meet the specifications to the entire satisfaction of the Employer, shall be borne by the Contractor. Timeline for closing any non-conformity issued to the Contractor after taking proper correction and the corrective action shall be not more than fifteen (15) days from the date of issue of such non-conformity. In case of delays more than fifteen (15) days from

the date of issuance of such non-conformity, the Employer may furnish a reminder to the Contractor for corrective action on priority and shall also withhold the appropriate amount as deemed fit by the Project In-Charge in that month's RA Bill till such time the defect(s) is/are rectified. The Works may also be not certified for payment, as directed by the Project In-Charge. If the defect(s)/non-conformity(ies) is/are not rectified within the period of fifteen (15) days or such further period specified in the reminder by the Employer, then the Employer may, at its discretion, rectify the defect(s)/non-conformity(ies), through other competent agency(ies) and recover such costs plus 15% (fifteen percent) of such costs as incidental and overhead costs from the Contractor's bills. The status of open non-conformities will be provided by the Contractor to the Project In-Charge on a monthly basis. An appropriate amount, as decided by the Project In-Charge, shall be debited for any irreversible defect(s) by the Contractor or any unrectified defect(s) that are passed on to a third party engaged for carrying out subsequent works. In such a scenario, this amount shall be credited to the said third party carrying out subsequent works for rectifying or correcting the deficiency(ies) or defect(s).

The Employer shall assess the skill level of workmen deployed by the Contractor to attain the productivity and quality of the final product. If the skill levels of key trades are not as per requirements, the Contractor shall arrange for upgrading the skill levels of key trades by awareness and training program(s) of workmen whose works have direct impact on productivity, timely completion and quality of the product. The Contractor shall bear the expenses of such skill development initiative of key trades to improve the productivity and quality. Attention shall be given to the appearance and finish for exposed works. The workmanship shall be consistent with the standards specified in the specifications including the tolerances. The Contractor shall arrange to conduct skill upgradation program for his workforce through Skill India Initiative of the government from time to time and develop skilled workforce in the Project. Quality training on method statements shall be arranged by the Contractor for the skilled, semi-skilled, unskilled workers, supervisors and engineers present on the site on regular basis as per approved training calendar or as instructed by the Employer from time to time. The Contractor shall ensure to maintain at least 50% of its workforce as certified workforce for critical activities through such skill development programs. Daily tool box talks for quality "Do's and Don'ts" shall be given by the Contractor's respective building in-charge to the workforce.

All tolerances and acceptance criteria shall be given in the approved drawings, specifications, project quality plan, ITP and method statements. The same shall be adhered to achieve full compliance. Apart from the other tolerances and acceptance criteria, the Contractor agrees and confirms that the level tolerance to the finished floor level of the tower shall be +/- 3mm in a meter and no greater than 5mm deviation in a meter from the stipulated finished floor level in total.

All guaranty, warranty related documents including test reports shall be handed over by the Contractor to the Employer along with the final bill. Handing over of all completed Works shall be done as per the Employer's direction after completion of all the Works in all respects to the satisfaction of the Employer including rectification / attending snags/defects (if any), housekeeping, closure of all non-conformities, in a standard format.

The Contractor shall take all measures to ensure quality certification as may be required under applicable laws including but not limited to (Form 2A) of Real Estate Regulatory Authority, in terms of the Real Estate (Regulation and Development) Act, 2016 ("RERA") read with Maharashtra Real Estate (Regulation and Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rates of Interest and Disclosures on Website) Rules, 2017 are completed within the statutory timelines where applicable and otherwise on a quarterly basis. The Contractor shall be responsible to attend and rectify any defects that occur within the defect liability period of RERA within thirty (30) days of notification at its cost, failing which, the Employer reserves the right to have the same rectified through third party(ies) and charge the Contractor a 20% additional amount over and above the rectification cost incurred by the Employer. The Contractor agrees that there shall be zero tolerance

towards the carpet area with respect to dimensional requirements as per RERA, which shall be ensured by the Contractor in all areas under its scope.

COC 42 - Variations

The Employer shall have the right to increase/decrease the scope of the Works to any extent at any time during the duration of this Works Contract. The Employer shall not be under the obligation to provide reasons for any such increase/decrease in the scope of this Works Contract.

The unit rates of the items in the BOQ shall not be subject to any adjustments in the event that the aggregate amount of variation of this Works Contract exceeds/reduces in any proportion to the Contract Amount, throughout the duration of this Works Contract. (i.e. till the end of the DNP).

The Contractor shall not make any alteration and/or modification to the permanent works, unless and until instructed by the Employer in writing.

The Project In-Charge may issue instructions requiring a variation. Such variations may include increase/decrease in the quantities of the existing BOQ and/or extra item(s) not provided for in the BOQ.

COC 43 - Virtual Completion Certificate

Virtual completion means completion of the Works forming part of this Works Contract. However, upon substantial completion of the Works, as may be agreed by the Project In-Charge, it may issue VCC towards the Project to which a list of minor snags/defects shall be attached. All such snags/defects shall be necessarily rectified by the Contractor within a period of two (2) months from the issue of the VCC by the Project In-Charge, failing which, such snags/defects may be rectified by the Employer at its discretion and wherefrom the Employer shall recover such cost, together with all incidental and overhead costs at a minimum of @ 15% (fifteen percent), from the final bill of the Contractor.

COC 44 - Defects Notification Period and Letter of Discharge

The DNP shall be as mentioned in the Appendix. During such period the entire Works shall be guaranteed by the Contractor against defects.

If any defects whatsoever, are observed during the DNP due to any reasons attributable to the Contractor, the Contractor shall have to rectify the same to the satisfaction of the Employer at the Contractor's own cost and expense. However, if the defects are caused due to any reason not attributable to the Contractor, if so determined solely by the Project In-Charge, the Contractor shall nevertheless rectify such defects, but the cost incurred towards the same shall be borne by the Employer.

In the event the Contractor fails to rectify the defects and consequential damage within a period of fifteen (15) days or any such period as may be notified by the Project In-Charge, the Employer shall be free to rectify the same and recover such costs together with all incidental and overhead costs, from the Contractor's bills due, and/or from the retention amount and/or any monies due to the Contractor.

Following the expiry of the DNP and upon successful rectification of all notified defects, the Contractor shall request issuance of Final Completion Certificate, Letter of Discharge and release of retention amount. Within fifteen (15) days of receiving such request, the Project In-Charge shall issue a "Final Completion Certificate" and "Letter of Discharge" along with the statement indicating amounts due

against the retention amount. The retention amount shall be released upon the acceptance of Final Completion Certificate and Letter of Discharge. Upon acceptance of Final Completion Certificate and Letter of Discharge, the Works Contracts shall stand concluded.

COC 45 - Force Majeure

Notwithstanding anything contained hereinabove, neither the Employer nor the Contractor shall be liable to each other for discharging their obligations under the terms and conditions of the Works Contract where,

a) From the date of signing of this Works Contract till the completion of the Works, if there occurs an event of Force Majeure which includes but is not limited to earthquake, floods, famine or terrorist attacks, war (whether declared or not), hostilities, invasion, act of foreign enemies, rebellion, revolution, insurrection, military or usurped power, strike, civil war, riot, epidemic, pandemic, commotion or disorder or any other irresistible force or any adverse market/regulatory conditions beyond the control of the Employer, then the Employer shall be entitled to terminate the Works Contract, if such Force Majeure continues for a continuous period of thirty (30) days or beyond.

b) If during the tenure of this Works Contract, any completed portion of the Works is/are destroyed or damaged by fire (not caused by any wilful act of the Contractor), earthquake, tempest, flood, lighting, violence of any army or mob or enemies of the country or by irresistible force of the orders of any statutory authorities or any other natural calamity so as to render the portion of work completed unfit for the purpose for which it was constructed, the Employer shall have the right to terminate the Works Contract with immediate effect.

c) If during the term of this Works Contract, the Project Site or any part thereof is acquired or requisitioned by the government or any local authority or authority under any act or rules made thereunder, the Employer has the right to terminate the Works Contract with immediate effect.

In cases of termination of the Works Contract as mentioned hereinabove, the Contractor shall return advances paid to it by the Employer along with handing over of the Project Site and the Contractor shall be paid for the Works executed and completed until the date of termination and cost of materials purchased for the Works. Alternatively, the Employer may at its discretion allow the Contractor to take ownership of such materials.

COC 46 - Foreclosure of the Works Contract in Full or in Part

If at any point in time whatsoever, during the subsistence of the Works Contract, the Employer decides to abandon and/or reduce the scope of Works for any reason whatsoever, the Employer shall inform the Contractor to that effect, and the Contractor will have no claim to any payment and/or compensation and/or any profit and/or advantage which it might have derived from the execution of the Works in full, except for the Work (if any) done prior to the foreclosure of the Works.

The Contractor shall be paid in full for the Works executed at the Project Site prior to the foreclosure of the Works, and also at a reasonable rate, , for materials delivered to the Project Site and lying in good and usable condition under the Works Contract, if any, as certified by the Project In-Charge. The certification issued by the Project In-Charge in this regard, will be final and binding upon the Contractor and the Contractor will not be entitled to challenge the same.

No compensation for loss of profit, loss of business opportunity or any other costs shall be payable by the Employer to the Contractor.

COC 47 - Contractor's Failure

The Contractor shall complete the Works as per the timelines mentioned under COC 3 [*Programme of Works*]. In the event, the actual progress has fallen (or is likely to fall) behind the programme under COC 3 [*Programme of Works*]; the Project In-Charge shall notify the Contractor of such delay. If the Contractor fails to remedy such delays within such time as solely determined by the Employer, the Employer shall be entitled to terminate this Works Contract.

The Contractor shall be entitled to payment for the Works executed before such termination, after deduction of all outstanding advances, liquidated damages, cost of delays, the Employer approved purchases made for the Works, if any, etc., on termination.
Similarly, if the Contractor fails to adhere to the specifications, desired quality, safety standards or fails to mobilize adequate manpower as per COC 3 [*Programme of Works*] or fails to adhere to the Works Contract including but not limited to, the Contractor abandoning the Works or refusing or failing to comply with an instruction of the Employer or failing to proceed expeditiously and without delay, or being in breach of the Works Contract; the Contractor shall be in default of the terms and conditions of this Works Contract.

In case the Contractor fails to remedy the default within a period of fourteen (14) days, then in such case the Employer may at its discretion terminate this Works Contract and engage third party(ies) to complete the balance of the Works at the risks and costs of the Contractor, which shall include actual cost of engaging such third party(ies) plus 15% (fifteen percent) as overheads and administration charges of the Employer.

COC 48 - Misdemeanor on Part of the Contractor

In the event of any misdemeanor on part of the Contractor and/or its representative/s or their involvement in unethical or corrupt practices or their attempt to unduly influence the Employer's personnel for any reasons whatsoever, the Employer shall have the right to terminate this Works Contract without any notice to the Contractor and forfeit all the money payable to the Contractor without prejudice to any other remedy available to the Employer under the terms of this Works Contract including completing the balance Works at the sole risk and cost of the Contractor and recover any advances paid.

COC 49 - Termination of Works Contract

The termination or rescission of this Works Contract or cancellation of any of the Works or part thereof for any reason whatsoever, shall be done after giving a written notice to that effect and the Contractor shall be entitled to receive payment only for the completed Works under the BOQ line items and for any approved variations after adjustments of any amounts due from the Contractor. Such payment shall be payable within two (2) months from the date of submission of the bill and necessary documentation.

If the Contractor is subject to a scheme of arrangement or merger or amalgamation and the prior written consent of the Employer is not obtained for such scheme of arrangement or merger or amalgamation, then the Contractor agrees and confirms that such scheme of arrangement or merger or amalgamation shall amount to an assignment in violation of COC 52 herein and the Employer shall be entitled (but not obliged) at its sole discretion to terminate this Works Contract.

Upon such termination of this Works Contract, the following shall apply,

a) The Contractor shall vacate the Project Site without taking any materials and plant and any of the Contractor's equipment which the Employer instructs and identifies are required for completion of this Works Contract, free of cost. In such event the Employer may additionally recover its cost of completing the Works Contract from the Contractor.

b) The Contractor shall also cause its employees or agents or subcontractors/vendors etc. to forthwith vacate the Project Site and deliver all goods, the Contractor's documents and other design documents made by the Contractor/for the Contractor, to the Employer. The Contractor shall comply immediately with any instructions included in the notice of termination;

- for the assignment or novation of any contracts, and
- for the protection of life and/or property and/or for the safety of this Works Contract.

c) After termination, the Employer may complete the Works or cause to be completed by a third party. The Employer or the said third party shall be entitled to use any goods, the Contractor's documents and other design documents made by or on behalf of the Contractor.

d) the Employer's liability shall be limited to payment of unpaid balance for the completed Works and approved variations after deduction of all outstanding advances, liquidated damages, any other penalties, additional cost incurred including under COC 33 [*Contractor's Duty to Indemnify*] after the termination of this Works Contract to carry out balance works. Such payment shall be payable by the Employer to the Contractor post completion of the Works stipulated in this Works Contract.

In any event of termination, for the purpose of recovering advances or any excess amounts paid by the Employer to the Contractor and/or any damages and/or losses (including losses towards wastage, rework, loss of material amongst others) as determined by the Employer at its sole discretion including under COC 33 [*Contractor's Duty to Indemnify*], the Employer shall be entitled to invoke any/all the irrevocable bank guarantees furnished to it by the Contractor including the PBG, and/or adjust the same against the retention amount, any RA Bills or the final bill of the Contractor.

COC 50 - Settlement of Disputes

All disputes between the Employer and the Contractor arising out of or in connection with this Works Contract, including any disputes about its existence, validity or termination, and including without limitation any disputes over payments, any claim for indemnification hereunder, or any opinion, decision, certificate or valuation of the Employer or the Contractor, shall first be resolved between the respective senior representatives of the Employer and the Contractor, by amicable resolution within fifteen (15) days from the date of receipt of a written notice by either the Employer or the Contractor requesting amicable resolution in respect of such dispute. If the dispute is not resolved by such amicable resolution within the said fifteen (15) day period between the senior representatives of the Employer and the Contractor, the dispute shall then be referred to the Managing Director of the Employer and the Managing Director/CEO of the Contractor. If the dispute is still not resolved within a period of 15 days, the dispute shall be exclusively submitted to final and binding arbitration to a Sole Arbitrator, as mutually appointed by the Parties.

In the event the Parties fail to agree on a Sole Arbitrator within a period of thirty (30) days the said disputes shall be referred to an Arbitral Tribunal consisting of three (3) arbitrators, one each to be

appointed by each of the Parties and the third Arbitrator being the Presiding Arbitrator, to be appointed by the two (2) arbitrators so appointed by each of the Parties.

The Arbitration proceedings shall be governed by the Arbitration and Conciliation Act, 1996 or any statutory modification/amendment thereof. The arbitration proceedings shall be in English language and shall be held in Mumbai and the place, venue and seat of arbitration shall be Mumbai, India.

COC 51 - Governing Law and Jurisdiction

Subject to COC 50 [*Settlement of Disputes*] above, his Works Contract shall be subject to the exclusive jurisdiction of the courts at Mumbai.

COC 52 - Assignment

The Contractor shall not assign the whole or any part of this Works Contract or any benefit or interest in or under this Works Contract.

COC 53 - Contractor's Dues to Third Party(ies)

In the event the Contractor fails to pay his dues to any third party(ies) including statutory authorities, the Employer shall have the right but not the obligation to settle such dues on behalf of the Contractor. Such amount shall be recovered by the Employer from the Contractor along with an amount of 15% of such dues paid by the Employer on behalf of the Contractor, towards administrative charges.

COC 54 - Severability

If for any reason whatsoever any term, covenant or condition of this Works Contract, or the application thereof to any person, firm or corporation or circumstance, is to any extent held or rendered invalid, unenforceable or illegal, then such term, covenant or condition;

a) Shall be deemed to be independent of the remainder of this Works Contract and to be severable and divisible therefrom, and its invalidity, unenforceability or illegality shall not affect, impair or invalidate the remainder of this Works Contract or any part thereof; and

b) Shall continue to be applicable to and enforceable to the fullest extent permitted by law against any person and circumstance other than those as to which it has been held or rendered invalid, unenforceable or illegal.

COC 55 - Entire Works Contract

This Works Contract constitutes the entire agreement between the Parties with respect to the subject matter herein and supersedes and cancels any prior oral or written agreement, representation, understanding, arrangement, communication or expression of intent relating to the subject matter of this Works Contract.

COC 56 – Not Applicable

COC 57 – Not Applicable

COC 58 – Not Applicable

COC 59 - Special Condition for RERA

The Employer reserves the right to include the name of the Contractor in the registration of the Project with the Real Estate Regulatory Authority (RERA), in terms of the Real Estate (Regulation and Development) Act, 2016 read with Maharashtra Real Estate (Regulation and Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rates of Interest and Disclosures on Website) Rules, 2017 and the other Rules, Regulations, Circulars and Rulings issued thereunder from time to time and the Contractor hereby grants his approval for the same.

COC 60 - Confidentiality

Each party shall protect confidential information received from the other against disclosure to third parties using the same degree of care that it uses to protect its own confidential information of a similar nature, but at least reasonable care. The receiving party shall limit its use of Confidential Information to those purposes necessary for the performance of this Agreement. Confidential Information shall mean information or material which is proprietary to a party, and/or its affiliates or otherwise provided to the other party in connection with this Agreement, and designated as confidential by that party and includes without limitation all financial, technical (including methods and manuals, computer database information and records, computer object and source codes), operational, commercial, customer, staff and management information and know-how, trade secrets, materials and other information or materials (including without limitation, drafts, drawings, specifications, photos, pictures, charts, opinions, expertise, projections and forecasts etc.), of whatever kind in written form or stored electronically so designated which is disclosed to the other party during the term of this Agreement but does not include information that:

a) at is, or any time becomes, available to the public without any breach of obligation not to disclose it;
b) at the time it is disclosed, is already in the receiving party's rightful possession or available to it or its representatives from any other source having no obligation not to disclose it;
c) is or becomes available to the receiving party on a non-confidential basis from a source that to the receiving party's knowledge, is not and was not bound at the time such information becomes available by a confidentiality agreement with, or other contractual, legal or fiduciary obligation of confidentiality to, the disclosing party with respect to such information.

Further, the Contractor shall not use any photos, pictures, drawings, project names, logos trademarks, financial data of the Project without the written consent of the Employer in any form including but not limited in its catalogue, profile, advertisement etc.

COC 61 - Stamp Duty & Registration Charges

Stamp duty (including any deficit stamp duty) and registration charges, if any, payable on this Works Contract or on any other documents/writings executed in pursuance hereof shall be borne and paid by the Contractor alone.